

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
LARRY MOSES,

Plaintiff,

-against-

CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, JASON V. JACKSON,
CHARNE JIMENEZ, JOSEPH COLLURA,
DETECTIVE TOUSSAINT, and JANE or JOHN DOE,
A CONFIDENTIAL INFORMANT,

Defendants.

Index No.: _____/2013

Purchased: August 16, 2013

Plaintiff designates KINGS
County as the place
of trial

THE BASIS OF VENUE IS CPLR § 504(3)

Plaintiff resides:
306 Montauk Avenue
Brooklyn, New York

SUMMONS

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To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
August 16, 2013

To: City of New York
Law Department
100 Church Street
New York, New York 10007

The New York City Police Department
Law Department
100 Church Street
New York, New York 10007

Jason V. Jackson
Charne Jimenez
Joseph Collura
Detective Toussaint

Eric E. Rothstein

Eric E. Rothstein
Rothstein Law PLLC
Attorneys for Plaintiff
11 Park Place, Suite 1100
New York, New York 10007
(212) 577-9797

Notice: The nature of this action is negligence

The relief sought is monetary damages

Upon failure to appear, judgment will be taken against you by default with interest from August 10, 2012, and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- x
LARRY MOSES,

Index No.: _____/2013

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, JASON V. JACKSON,
CHARNE JIMENEZ, JOSEPH COLLURA,
DETECTIVE TOUSSAINT, and JANE or JOHN DOE,
A CONFIDENTIAL INFORMANT,

Defendants.
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Plaintiff, LARRY MOSES, by his attorneys, ROTHSTEIN LAW PLLC, respectfully alleges as follows upon information and belief:

1. A notice of claim setting forth the time and place where the injuries sustained by the plaintiff were sustained, was duly filed with the office of the Corporation Counsel of the City of New York in accordance with Section 50(e) of the General Municipal Law on May 20, 2013, within 90 days after the causes of action herein accrued and before the commencement of this action; that the provisions of Section 50(h) of the General Municipal Law have been complied with; that more than 30 days have elapsed since the presentation of the aforesaid claim and demand and defendant has refused or neglected to make any adjustment thereof; and this action is commenced within one year and 90 days after the causes of action herein accrued as extended by CPLR § 205(a).

2. Plaintiff, LARRY MOSES, is a resident of Kings County, City and State of New York.

3. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and is a municipal corporation existing under and by the virtue of the laws of the State of New York.

4. At all times hereinafter mentioned, the New York City Police Department was and is a Department and/or Agency of defendant, the CITY OF NEW YORK.

5. Upon information and belief, defendant, Jason V. Jackson, is a resident of the State of New York.

6. At all times relevant, defendant, CITY OF NEW YORK, employed defendant, Jason V. Jackson.

7. At all times relevant, defendant, THE NEW YORK CITY POLICE DEPARTMENT, employed defendant, Jason V. Jackson.

8. At all times relevant, defendant, Jason V. Jackson, was a Police Officer with THE CITY OF NEW YORK.

9. At all times relevant, defendant, Jason V. Jackson, was a Police Officer with THE NEW YORK CITY POLICE DEPARTMENT.

10. At all times relevant, defendant, Jason V. Jackson, was assigned to the BNACU, which upon information and belief stands for Brooklyn North Anti-Crime Unit.

11. At all times relevant, defendant, Jason V. Jackson, was acting under the color of State Law.

12. At all times relevant, defendant, Jason V. Jackson, was acting both in his/her individual and official capacity as an employee of defendants, CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

13. At all times relevant, defendant, Jason V. Jackson, was acting within the scope of his/her employment with defendants, CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

14. Upon information and belief, defendant, Charne Jimenez, is a resident of the State of New York.

15. At all times relevant, defendant, CITY OF NEW YORK, employed defendant, Charne Jimenez.

16. At all times relevant, defendant, THE NEW YORK CITY POLICE DEPARTMENT,

employed defendant, Charne Jimenez.

17. At all times relevant, defendant, Charne Jimenez, was a Police Officer with THE CITY OF NEW YORK.

18. At all times relevant, defendant, Charne Jimenez, was a Police Officer with THE NEW YORK CITY POLICE DEPARTMENT.

19. At all times relevant, defendant, Charne Jimenez, was assigned to the BNACU, which upon information and belief stands for Brooklyn North Anti-Crime Unit.

20. At all times relevant, defendant, Charne Jimenez, was acting under the color of State Law.

21. At all times relevant, defendant, Charne Jimenez, was acting both in his/her individual and official capacity as an employee of defendants, CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

22. At all times relevant, defendant, Charne Jimenez, was acting within the scope of his/her employment with defendants, CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

23. Upon information and belief, defendant, Joseph Collura, is a resident of the State of New York.

24. At all times relevant, defendant, CITY OF NEW YORK, employed defendant, Joseph Collura.

25. At all times relevant, defendant, THE NEW YORK CITY POLICE DEPARTMENT, employed defendant, Joseph Collura.

26. At all times relevant, defendant, Joseph Collura, was a Detective with THE CITY OF NEW YORK.

27. At all times relevant, defendant, Joseph Collura, was a Detective with THE NEW YORK CITY POLICE DEPARTMENT.

28. At all times relevant, defendant, Joseph Collura, was acting under the color of State Law.

29. At all times relevant, defendant, Joseph Collura, was acting both in his/her individual and official capacity as an employee of defendants, CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

30. At all times relevant, defendant, Joseph Collura, was acting within the scope of his/her employment with defendants, CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

31. Upon information and belief, defendant, Detective Toussaint, first name unknown, is a resident of the State of New York.

32. At all times relevant, defendant, CITY OF NEW YORK, employed defendant, Detective Toussaint, first name unknown.

33. At all times relevant, defendant, THE NEW YORK CITY POLICE DEPARTMENT, employed defendant, Detective Toussaint, first name unknown.

34. At all times relevant, defendant, Detective Toussaint, first name unknown, was a Detective with THE CITY OF NEW YORK.

35. At all times relevant, defendant, Detective Toussaint, first name unknown, was a Detective with THE NEW YORK CITY POLICE DEPARTMENT.

36. At all times relevant, defendant, Detective Toussaint, first name unknown, was acting under the color of State Law.

37. At all times relevant, defendant, Detective Toussaint, first name unknown, was acting both in his/her individual and official capacity as an employee of defendants, CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

38. At all times relevant, defendant, Detective Toussaint, first name unknown, was acting within the scope of his/her employment with defendants, CITY OF NEW YORK and THE NEW YORK CITY

POLICE DEPARTMENT.

39. Defendants were at all times acting under color of state law, to wit, under color of the statutes, ordinances, customs, policies and/or practices of the State of New York and/or the City of New York and defendants were also acting within the scope of and in furtherance of their employment.

40. On August 10, 2012, defendants, and/or other Police Officers or Detectives employed by the CITY OR NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT, arrested plaintiff, or caused plaintiff to be arrested, while in the scope of his/her/their employment as a Detective/Police Officer with the New York City Police Department.

41. The arrest took place without a warrant.

42. The arrest was allegedly based upon information supplied by defendant, Jane or John Doe, a confidential informant.

43. Said confidential informant was acting as an agent of defendants.

44. Upon information and belief, the confidential informant told defendants that plaintiff possessed a gun.

45. Plaintiff did not possess a gun.

46. Defendants falsely stated that plaintiff was holding a box containing a gun.

47. Defendants failed to investigate the matter or determine the reliability of the confidential informant.

48. The arrest took place outside 475 Riverdale Avenue, in the County of Kings, City and State of New York.

49. On or about August 11, 2012, plaintiff was charged in Criminal Court with violating Penal Law section 265.01 based upon a Criminal Court complaint signed by defendant, Charne Jimenez upon information provided by defendant, Jason V. Jackson.

50. On or about August 11, 2012, the Court set bail on plaintiff and he was detained by the New

York City Department of Correction.

51. Upon information and belief, plaintiff did not make bail until August 13, 2013.

52. On or about May 1, 2013, the Court dismissed the case against plaintiff.

53. As a result of defendants' action, plaintiff was continually incarcerated from August 10 to August 13, 2010.

54. This dismissal of plaintiff's criminal case constituted a termination of the action in his favor.

**FIRST CAUSE OF ACTION
(False Arrest)**

55. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

56. That on or about August 10, 2012, defendants did wrongfully detain and imprison plaintiff without probable cause, without a properly issued arrest warrant, and in bad faith.

57. That on or about August 10, 2012, defendants did falsely arrest, imprison, and deprive plaintiff of his liberty without probable cause.

58. Defendants intentionally confined plaintiff, plaintiff was conscious of his confinement and did not consent thereto, and defendants did not have any justification or privilege to detain plaintiff.

59. In commencing and continuing said wrongful arrest, detainment and imprisonment, defendants caused plaintiff to be wrongfully detained in violation of the Penal Laws of the State of New York and his constitutional rights.

60. At the time of his unlawful imprisonment, plaintiff had not committed or attempted to commit any illegal act.

61. At the time of his unlawful imprisonment, plaintiff had not committed or attempted to commit any crime.

62. Plaintiff had not given defendants probable cause to believe that he had committed any illegal acts.

63. At the time of plaintiff's unlawful arrest, defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest was false and without probable cause.

64. That defendants acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of plaintiff.

65. Defendants willfully and wrongfully accused plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.

66. That the aforesaid arrest was malicious, unlawful and not based upon a duly issued warrant, probable cause, and/or any other justification, and was therefore a false arrest.

67. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, and damage to his reputation and standing within his community.

68. As a result of the foregoing, plaintiff demands judgment against defendants in a sum of money that exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

69. The conduct of defendants warrants punitive damages.

**AS AND FOR A SECOND CAUSE OF ACTION
(Malicious Prosecution)**

70. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

71. Defendants did maliciously cause a criminal prosecution to be commenced against plaintiff in the Criminal Court of the City of New York, County of Kings, without probable cause and in bad faith.

72. Defendants' actions contributed to the commencement or continuation of the criminal proceeding without probable cause and with malice.

73. That defendants' falsely told the District Attorney's Office, in connection with plaintiff's criminal prosecution, that plaintiff possessed a box containing a gun.

74. In commencing and continuing said malicious prosecution, defendants, CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, by their agents, servants and employees, including the individually named defendants herein, caused plaintiff to be falsely charged with crimes in violation of the Penal Laws of the State of New York.

75. That plaintiff had not committed or attempted to commit any illegal act(s).

76. That plaintiff had not given defendants, CITY OF NEW YORK, by its agents, servants and employees, including but not limited to the individually named defendants probable cause to believe that he had committed the illegal act(s) of which he was accused.

77. That defendants, CITY OF NEW YORK, by its agents, servants and employees, including but not limited to the individually named defendants, knew or should have known, through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

78. That defendants, CITY OF NEW YORK, by its agents, servants and employees, including but not limited to the individually named defendants, willfully and wrongfully accused plaintiff of having violated the Penal Laws of the State of New York.

79. On May 1, 2013, the criminal case against plaintiff was dismissed.

80. Said dismissal constitutes a termination of the criminal proceeding in plaintiff's favor.

81. As a result of the malicious prosecution, plaintiff suffered and continues to suffer substantial damages.

82. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses and damage to his reputation and standing within the community.

83. As a result of the foregoing, plaintiff demands judgment against defendants in a sum of money that exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

84. The conduct of defendants warrants punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
(Violation of Civil Rights)

85. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

86. That on or about August 10, 2012, plaintiff falsely arrested, detained against his will, and maliciously prosecuted.

87. That the actions of defendants heretofore described constitute false arrest and malicious prosecution and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of the plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, Fourth, Eighth, and Fourteenth Amendments and the Constitution of the State of New York.

88. That the conduct and actions of defendants, CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH COLLURA, DETECTIVE TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT, and other police officers, acting under color of State law, in using excessive force upon plaintiff, were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of the plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983, the United States Constitution, Fourth and Fourteenth Amendments and the Constitution of the State of New York.

89. Defendants, CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH COLLURA, DETECTIVE TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT, actions were undertaken under color of law and would not have existed but for said defendant, CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH COLLURA, DETECTIVE

TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT, using their official power.

90. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, and humiliation.

91. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money, which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

92. The conduct of defendants warrants punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION
(Monell Claim)

93. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

94. The actions of defendant, CITY OF NEW YORK, its agents, servants and/or employees heretofore described constitute false arrest and malicious prosecution and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of the plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and the Fourth and Fourteenth Amendments to the United States Constitution and the Constitution of the State of New York.

95. The supervisors and policy making officers of defendant, CITY OF NEW YORK, and its POLICE DEPARTMENT, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

96. Defendant, CITY OF NEW YORK, has failed to properly and effectively train their employees with regard to proper constitutional and statutory limits on the exercise of their authority, including the proper use and supervision of confidential informants, and investigation of their reliability and such failure continues to this day.

97. Defendant, CITY OF NEW YORK, hired and retained in its employ certain police officers, including, but not limited to, defendants, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH

COLLURA, DETECTIVE TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT, with knowledge that said police officers/detective/informant failed to properly use and determine the reliability of confidential informants, and provided false information to the Courts and were, therefore, unfit to be police officers.

98. At all times material to this Complaint, defendant, CITY OF NEW YORK, acting through its POLICE DEPARTMENT, had in effect de facto policies, practices and customs that were a direct and proximate cause of the unconstitutional conduct of defendants, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH COLLURA, DETECTIVE TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT.

99. These policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers engaged in the false arrest, malicious prosecution and improper use of confidential informants in warrantless and otherwise unconstitutional arrests or otherwise impermissible imprisonments, particularly those who are repeatedly accused of such acts; the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories, and the failure to properly investigate.

100. The policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions.

101. The policymakers of the New York City Police Department and the City of New York knew or should have known that police/peace officers, including but not limited to defendants, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH COLLURA, DETECTIVE TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT, were violating people's Constitutional rights and that these police officers/detectives were taking actions that were shocking the conscience or otherwise violating the substantive due process rights of the people of the City of New York.

102. The fact that in the vast majority, if not all, of police abuse cases that result in verdicts or

substantial settlements for the victims, defendants, CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, impose no discipline, either before or after the Court resolution, almost never even reopens an investigation previously conducted after such a resolution; and sometimes promotes the officer to a position of greater authority despite the resolution.

103. Defendants, CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT tolerates and encourages police officers to lie to cover up the wrongful conduct of its employees.

104. Defendant, CITY OF NEW YORK, has paid millions and millions of dollars in verdicts and settlements in the past decade in cases of police false arrest and malicious prosecution.

105. On information and belief, defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, failed to effectively screen, hire, train, supervise and discipline its police officers/detectives, including, but not limited to, defendants, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH COLLURA, DETECTIVE TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT, herein, regarding legal arrests and the use of confidential witnesses, lack of truthfulness and for their failure to protect citizens from unconstitutional conduct of other police officers/detectives, thereby permitting and allowing defendants, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH COLLURA, DETECTIVE TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT 10, herein to falsely arrest and maliciously prosecute plaintiff and violate his federal and state constitutional rights, or to permit these action to take place with their knowledge or consent.

106. On information and belief, defendants, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH COLLURA, DETECTIVE TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT, and other police officers, had been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, on notice that defendants, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH COLLURA, DETECTIVE TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT,

and other police/peace officers were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by plaintiff herein.

107. On information and belief, defendant, CITY OF NEW YORK, failed to put into place and otherwise maintain an adequate structure for risk containment and stress management relative to its police officers. Inter alia, the structure was deficient at the time of pre-selection and selection to evaluation and exchange within the command structure about the performance of individual police officers; to the training of supervisory personnel to effectively and adequately evaluate performance of an officer; and to otherwise put the command structure on notice that an individual was at significant levels of risk to the public at large or to specific segments thereof. The net effect of this was to permit police officers of the NEW YORK CITY POLICE DEPARTMENT to function at levels of significant and substantial risk to the public.

108. As a result of the foregoing, conscious policies, practices, customs or usages, defendant, CITY OF NEW YORK, has permitted and allowed for the employment and retention of individuals whose individual circumstances place the public or segments thereof at substantial risk of being the victims of false arrest and malicious prosecution. Such policies, practices, customs or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to plaintiff herein.

109. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, and damage to his reputation and standing within the community.

110. As a result of the foregoing, plaintiff demands judgment against defendants in a sum of money that exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
(Attorneys' Fees)

111. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

112. That the actions of defendants, heretofore described, resulting from the August 10, 2012, false arrest and malicious prosecution deprived plaintiff of rights, privileges, and immunities as guaranteed under the Fourth, Eighth, and Fourteenth Amendment of the United States Constitution, the New York State Constitution and the Civil Rights Acts, 42 U.S.C. §1983.

113. That the complained of conduct was either the result of an official policy or unofficial custom, including, but not limited to policies and customs concerning the hiring, training, supervision, retention and discipline of defendant, CITY OF NEW YORK's agents, servants and/or employees, and those involving the detention, unlawful imprisonment, assault and battery and use of excessive force upon individuals, including plaintiff.

114. That in the event that plaintiff is successful in the prosecution of the aforesaid claim(s), plaintiff shall be a prevailing party within the meaning of 42 U.S.C. §1988 and be entitled to the recovery of said attorneys' fees from the defendants.

WHEREFORE, plaintiff, LARRY MOSES, respectfully demands judgment against defendants, CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH COLLURA, DETECTIVE TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction; an award of

reasonable attorney's fees, costs and disbursements of this action; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: New York, New York
August 16, 2013

Yours, etc.

ROTHSTEIN LAW PLLC
Attorneys for Plaintiff
11 Park Place, Suite 1100
New York, New York 10007
(212) 577-9797

By: *Eric E. Rothstein*
Eric E. Rothstein

VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

ERIC E. ROTHSTEIN, an attorney duly admitted to practice law in the State of New York, affirms the following to be true under penalty of perjury:

I am the attorney of record for the plaintiff in the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff is because plaintiff resides in a county other than the county I maintain my offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: books and records maintained at my office.

Dated: New York, New York
 August 16, 2013

ROTHSTEIN LAW PLLC
Attorneys for Plaintiff
11 Park Place, Suite 1100
New York, New York 10007
(212) 577-9797

By: *Eric E. Rothstein*
 Eric E. Rothstein

Index No.: _____/13

**SUPRMEME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

LARRY MOSES,

Plaintiff,

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, JASON V. JACKSON, CHARNE JIMENEZ, JOSEPH COLLURA, DETECTIVE TOUSSAINT, and JANE or JOHN DOE, A CONFIDENTIAL INFORMANT,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

ROTHSTEIN LAW PLLC
Attorneys for **Plaintiff**
11 Park Place, Suite 1100
New York, New York 10007
212-577-9797

CERTIFICATION BY ATTORNEY:

The undersigned, an attorney duly admitted to practice in the Courts of the State of New York, shows:

I certify that, to the best of my knowledge, information and belief formed after an inquiry reasonable under the circumstance, the presentation of the paper(s) listed above or contention(s) herein are not frivolous as defined in §130-1.1(c).

Eric E. Rothstein _____
Eric E. Rothstein
Rothstein Law PLLC
11 Park Place, Suite 1100
New York, New York 10007
212-577-9797